

“A motion to compel (or to quash) production of documents or tangible things at a deposition must be accompanied by a separate statement setting forth the particular documents or demand at issue, the responses received, and the reasons why production should be compelled.”(Cal. Rules of Court, rule 3.1345(a).) However, a separate statement is not required “[w]hen no response has been provided to the request for discovery[.]” (*Id.* at (b).) As such, Plaintiff’s argument to deny the motion to quash is unavailing because there is no evidence of a response to the subpoena.

On the merits, Silvercrest again relies on *Pacers*. Again, *Pacers* is inapplicable because Silvercrest is not a natural person. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1973) 354 U.S. 118, 122; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Moreover, the 5th Amendment privilege does not protect against the production of documents possessed by third parties. (*Couch v. United States* (1973) 409 U.S. 322, 323-324 [5th amendment privilege unavailable to prevent the production of evidence from another party].) “A party is privileged from producing the evidence, but not from its production.” (*Johnson v. United States* (1913) 228 U.S. 457.)

Defendant Silvercrest Advertising’s Motion to Quash Subpoenas DENIED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT OF CHRISTIANA LEWIS BY CHRISTIANA LEWIS

Tentative Ruling:

No Opposition filed by Defendants.

Plaintiff’s Motion for Leave to File Second Amended Complaint GRANTED. The Second Amended Complaint shall be deemed filed as of the date of this order.

Case Management Conference and OSC rescheduled from 10.26.26 to 12.01.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603512	KOHEN VS ARIANA 63, L.P.	DEMURRER ON COMPLAINT OF MICHAEL KOHEN AS TO 1ST, 2ND, 3RD, 4TH, 5TH, 7TH, 8TH, 9TH AND 10TH CAUSES OF ACTION OF COMPLAINT BY ARIANA 63, L.P., INVESTMENT CONCEPTS, INC., ARIANA AT EL PASEO APARTMENT HOMES

Tentative Ruling: No tentative ruling.

Section 430.41 (a) states in relevant part: “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer **in person or by telephone or by video conference** with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the